

Tentative Rulings
May 21, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Gardner v. Omnitrans, et al*, Case No. CIVSB2422411
Defendant County's Motion for Attorneys' Fees
5/21/26, 9:00 a.m., Dept. S-17

The Court is cognizant that the Defendant County withdrew its Motion for Summary Judgment (MSJ) after Plaintiff voluntarily dismissed the County on April 1, 2026. This contemporaneous motion for sanctions – couched as a “Motion for Attorneys’ Fees, made pursuant to Code of Civil Procedure section 128.7” – was not withdrawn. Sanctions, in the form of attorneys’ fees, are requested in this motion in light of the asserted MSJ and various preceding communications related to the merit (or lack thereof) of Plaintiff’s case against the Defendant County.

The Court would inquire whether this unopposed matter is now **MOOT** because of Plaintiff’s dismissal of movant. If not moot, the Court will inquire whether Plaintiff failed to oppose due to perceived mootness and whether a brief continuance is needed to allow proper briefing on the merits.
